Syllabus

MARGOLIN, DIRECTOR OF THE EXECUTIVE OFFICE FOR IMMIGRATION REVIEW *v.* NATIONAL ASSOCIATION OF IMMIGRATION JUDGES

ON PETITION FOR WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. 25–767. Decided May 26, 2026

In October 2021, the Executive Office for Immigration Review implemented a rule requiring immigration judges to obtain supervisory approval for public speeches relating to their official duties. An association of such judges (respondent here) challenged the policy in federal district court, asserting violations of its members' First and Fifth Amendment rights. The District Court held that respondent's challenge must proceed through the administrative review scheme established by the Civil Service Reform Act of 1978 (CSRA), 92 Stat. 1122, 1125, 5 U. S. C. §§ 1205, 1206. But the Fourth Circuit vacated and remanded for factfinding into whether that review scheme was functioning as Congress intended, an issue the parties had not raised.

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Held: The Fourth Circuit violated the party-presentation principle when it decided a question much broader than the one respondent advanced. Federal courts adhere to the principle of party presentation—the "rule that points not argued will not be considered." *United States* v. *Burke*, 504 U. S. 229, 246 (Scalia, J., concurring in judgment). As respondent conceded below, this Court has held that Congress intended federal employees to bring most work-related grievances to the Merit Systems Protection Board and the Special Counsel—not to federal district court. Respondent argued only that the specific claims of its members were not the kind of work-related claims that Congress intended to steer out of district court. The Fourth Circuit transformed respondent's argument that the CSRA's claim-channeling scheme did not cover its specific claims into one that the CSRA might not channel *any* claims. And the court did so without giving either side a chance to address its theory. That "'drasti[c]'" departure from the principle of party presentation "'constitute[d] an abuse of discretion.'" *Clark* v. *Sweeney*, 607 U. S. 7, 9–10 (*per curiam*) (quoting *United States* v. *Sineneng-Smith*, 590 U. S. 371, 375).

Certiorari granted; 160 F. 4th 100, reversed and remanded.